



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing seven judgments on Tuesday 10 March 2020 and 11 judgments and / or decisions on Thursday 12 March 2020.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 10 March 2020

[Hernehult v. Norway \(application no. 14652/16\)](#)

[Pedersen and Others v. Norway \(no. 39710/15\)](#)

Both cases concern child welfare measures.

The applicant in the first case, Dan Mikael Hernehult, is a Swedish national, born in 1961. His case concerns the authorities' decision to take two of his sons into care.

Mr Hernehult moved to Norway in 2013 with his wife, a Romanian national, and their three sons, A, B and C, born in 2000, 2005 and 2007 respectively. The children were placed in emergency foster homes the same year because of the child welfare services' concerns over their parents' ability to care for them, and the fact that they were bringing them up in isolation, with an unusual focus on illness.

In 2014 the County Social Welfare Board accepted the welfare services' application to place the children in care, concluding that there had been serious neglect. B and C were placed in foster care, while A went to an institution as the foster carers had found his special needs too demanding.

Mr Hernehult and his wife brought the case before the courts, with the High Court ultimately deciding the matter in 2015. Noting that A was very unhappy in the institution, it found that it would be in his best interests to move him back to his parents, giving the mother and father extensive assistance. As concerned B and C, it decided that they should remain in care because of their attachment to their foster home. Contact rights were set at six six-hour sessions per year.

The applicants in the second case, M.R. and T. Pedersen, a married couple, and their child, X, are Norwegian nationals who were born in 1969, 1962 and 2008, respectively. Ms Pedersen is originally from the Philippines. Their case concerns the authorities' decision to deprive them of their parental responsibilities in respect of X and to authorise his adoption.

X was placed in an emergency foster home when he was a few months old because his parents were mentally ill and incapable of looking after him.

After some time, including a period in which Ms Pedersen stayed with him at a parent-child institution, the child welfare services applied to the County Social Welfare Board for a care order. The Board allowed the application and X was placed in a foster home. It took the view that the placement would be long-term and set contact rights at two two-hour visits per year.

Mr and Mrs Pedersen appealed and the case was then heard at three judicial instances, with the Supreme Court ultimately consenting in 2015 to X's adoption. The Supreme Court found that it would be in X's best interests to stay in the secure environment of his foster home, where he had lived almost all his life. It also took into account his deep attachment to his foster parents, as

compared to the lack of ties to his biological parents. It nevertheless considered it important that X maintain his ethnic ties to the Philippines and upheld the contact rights set by the lower courts.

Relying on Article 8 (right to respect for private and family life) of the European Convention on Human Rights, the applicants complain about the domestic authorities' decisions concerning their children. The applicant in the first case complains in particular about the decisions to take B and C into care and the subsequent refusal to return them, while the applicants in the second case complain about the decisions depriving them of their parental responsibility for their son, allowing his adoption and restricting their subsequent contact.

[Dyagilev v. Russia \(no. 49972/16\)](#)

The applicant, Maksim Andreyevich Dyagilev, is a Russian national who was born in 1990 and lives in St Petersburg (Russia).

The case concerns the procedure in Russia for examining requests to replace compulsory military service with its civilian alternative.

When Mr Dyagilev graduated from university in 2014, he became liable to be called up for military service and applied to the local military commissariat to be assigned to civilian service instead.

However, a military recruitment commission dismissed his application, finding that the information he had submitted, namely his curriculum vitae and a letter of recommendation from his employer, did not persuade them that he was a genuine pacifist.

He challenged the dismissal in the national courts, submitting his CV and the letter of recommendation again. The courts examined his application in 2015 but found that Mr Dyagilev had failed to prove that there was a serious and insurmountable conflict between the obligation to serve in the army and his convictions.

The cassation courts fully endorsed that reasoning.

Relying on Article 9 (freedom of thought, conscience and religion) of the European Convention, Mr Dyagilev complains about the dismissal of his request to be assigned to civilian instead of military service. He alleges in particular that military recruitment commissions in Russia were not independent from the military authorities.

[Hudorovič and Others v. Slovenia \(nos. 24816/14 and 25140/14\)](#)

The applicants are 16 Slovenian nationals of Roma origin. Their complaints concern an alleged lack of access to drinking water and sanitation taking into consideration their lifestyle and minority status.

The applicants in application no. 24816/14 are Branko Hudorovič, who was born in 1959 and lives in the informal Roma settlement of Goriča vas in Ribnica Municipality, and his son Aleks Kastelic, who was born in 2007.

The applicants' settlement consists mainly of wooden huts with no plumbing or sewerage.

In 1999 the first applicant and the mayor of Ribnica agreed that a diesel generator and a water tank of 2,000-3,000 litres were to be purchased and placed in the settlement. Water was to be provided by the fire brigade and the residents were also to pay for adequate sanitation (chemical toilets) and arrange for a clean-up of the surrounding area.

The water tank was eventually purchased and put in place but the parties disagree as to further developments. The Government submit that the fire brigade has delivered water at the residents' request and that it was poured into a large tank and other containers when the tank was full. The diesel generator and the water tank were subsequently sold. The applicants state that the tank became filled with mould and unusable and that residents had to replace it.

The applicants in application no. 25140/14 are a family of 14. The first applicant is Mr Ljubo Novak and the second is Ms Dunja Kočevar. They live in the informal Roma settlement at Dobruška vas 41 in Škocjan Municipality with their children.

In 2011 the authorities provided a group water connection on municipal land next to the settlement which by 2015 was supplying seven homes. The applicants have not taken part in that system, stating that this was partly due to opposition from a neighbour to their accessing it. They obtain water from a fountain in the village.

At the time the application was lodged Škocjan Municipality had no facilities for the discharge or treatment of urban wastewater. Residents of the area use septic tanks or small wastewater plants which the public municipal utility empties.

Relying on Article 3 (prohibition of inhuman or degrading treatment), Article 8 (right to respect for private and family life), and Article 14 (prohibition of discrimination) in conjunction with Articles 3 and 8, the applicants complain of a lack of access to basic public utilities, notably drinking water and sanitation. They also argue that they have been subjected to a negative and discriminatory attitude by the local authorities.

[Altıntaş v. Turkey \(no. 50495/08\)](#)

The applicant, Cihan Altıntaş, is a Turkish national who was born in 1984 and lives in Ankara. At the relevant time he was the editor of the monthly periodical *Tokat Demokrat*, distributed in the province of Tokat (Turkey).

The case concerns a judicial fine imposed on Mr Altıntaş for an article published in his periodical concerning the “Kızıldere events” of March 1972. He was sentenced in accordance with a provision of the Criminal Code on the offence of glorifying crimes or criminals.

In March 1972 members of two illegal organisations (Türkiye Halk Kurtuluş Partisi/Cephe (THKP/C) – Turkish People’s Liberation Party/Front; and Türkiye Halk Kurtuluş Ordusu (THKO) – Turkish People’s Liberation Army) took hostage three British nationals who were working on a NATO military base in Ünye (Turkey). The aim of this hostage-taking was to prevent the carrying out of the death penalty on three well-known founders of THKO. The hostages were taken to a house in Kızıldere, a village in Tokat province, where other members of THKP/C and THKO were located. A few days later the military police laid siege to the Kızıldere house. However, the insurgents refused to surrender and exchanged gunfire with the police before executing the three hostages. All but one of the insurgents were killed in the fighting.

In March 2007 an article on those events was published in Mr Altıntaş’s periodical under the heading “M. and his friends are still living idols of the youth”. A few days later he was charged with the offence of glorifying crimes or criminals as a result of the article.

In April 2008 Tokat Criminal Court ordered Mr Altıntaş to pay a judicial fine of about 430 euros (EUR) under Articles 215 and 218 of the Criminal Code. The court took the view that by using language such as “massacred” and “idols of the youth”, the article had glorified the insurgents who had been involved in the “Kızıldere events”.

Relying on Article 6 § 1 (right to a fair hearing) and Article 10 (freedom of expression) of the Convention, Mr Altıntaş complains of a breach of his freedom of expression on account of his criminal conviction and sentence, together with his inability to lodge an appeal on points of law against the first-instance judgment, as the fine fell below the statutory threshold for such an appeal.

Thursday 12 March 2020

[Aslan Ismayilov v. Azerbaijan \(no. 18498/15\)](#)

The applicant, Aslan Ziyaddin oglu Ismayilov, is an Azerbaijani national who was born in 1958 and lives in Baku.

The case concerns his complaint about proceedings for his disbarment.

In February 2013 after a dispute in a judge's office, the judge requested that the Azerbaijan Bar Association examine the applicant's behaviour. The judge said the applicant had unlawfully requested the return of documents submitted to the court after the end of a court hearing, had unlawfully entered his office, and had insulted and threatened him.

The Bar Association Disciplinary Commission referred the complaint to the Association's Presidium, finding, among other things, that he had unlawfully entered the judge's office to ask for the return of the documents submitted to the court and had insulted and threatened the judge. The applicant argued that he had been acting on behalf of a client and denied the judge's allegations. The Presidium subsequently referred the case to a court in May 2013 for proceedings on his disbarment.

A first set of proceedings ended with the Supreme Court returning the case for fresh examination and in July 2014 the Baku Court of Appeal upheld a first-instance decision to disbar him. The court heard a lawyer colleague of the applicant who had been in the judge's office at the time of the incident and three other people, court officers, who had witnessed the events. The Supreme Court upheld the appeal judgment in December 2014.

Relying on Article 6 § 1 (right to a fair hearing), the applicant complains that the courts made unfair decisions which lacked reasoning. He also complains about his disbarment under Article 10 (freedom of expression) and Article 14 (prohibition of discrimination).

[Chernika v. Ukraine \(no. 53791/11\)](#)

The applicant, Mykhaylo Chernika, is a Ukrainian national who was born in 1974 and lives in Lutsk (Ukraine).

The case concerns his complaint about the absence of prosecution witnesses at his trial on drugs charges which led to his conviction.

In December 2009 the applicant was convicted after a retrial of selling drugs which he had obtained through his work as a police investigator, the drugs having earlier been seized in a case he had worked on.

The court sentenced him to eight years' imprisonment. It relied in particular on pre-trial statements by three witnesses whom he had allegedly asked to sell the drugs for him and on the outcome of his formal pre-trial confrontations with them.

The witnesses were called to testify at the retrial but two of them were too ill, while the other – who had testified at his original trial – could not be located. The court also heard testimony from several other witnesses, including police officers, and examined documents which showed he had had possession of the drugs. His appeals against the verdict were rejected, with the Supreme Court making the final decision on his case in March 2011.

Relying on Article 6 §§ 1 and 3 (d) (right to a fair trial and right to obtain attendance and examination of witnesses), the applicant complains about the courts admitting the statements of the three witnesses in evidence against him, despite the fact that one of them was only examined during the original trial and that two of them did not testify in court at all.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Tuesday 10 March 2020

Name	Main application number
Indayeva and Sultanov v. Russia	58821/08
Krivov v. Russia	71862/13

Thursday 12 March 2020

Name	Main application number
Silva Justa v. Portugal	29073/15
Alekseyevy v. Russia	2446/15
Melekhin v. Russia	34196/05
Panarin v. Russia	43472/06
Grimmark v. Sweden	43726/17
Steen v. Sweden	62309/17
Çalikuşu v. Turkey	14576/08
Çalikuşu v. Turkey	25676/08
Çalikuşu v. Turkey	25723/08

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.